SR UNIVERSITY

Annexure-I

POLICY FOR USE OF UNFAIR MEANS

1. Guidelines for students:

The salient instructions for the conduct by a student in the Examination Hall shall be printed on the cover page of the answer – book and notice boards. These may include, the list is not exhaustive),

To Do List

(i) Be in the respective seats 15 minutes before the exams. You may be debarred entry or allowed delayed entry so that you do not disturb other students.

(ii) Bring your ID card. Display it appropriately.

(iii) Leave all materials like slips of papers/mobiles/digital devises/ study material bringing/ revision notes etc. outside the hall. Forgetting to take out in a hurry or worry is no excuse.

(iv) You must sit as per seating plan displayed outside the halls or notified on your intranet.

(v) You must ensure that you sign your attendance slip before leaving the Examination Hall.

(vi) Based on the course coordinator instructions given in the question paper, you may carry the materials allowed in the examination hall.

Not to Do List

(i) Do not get late.

(ii) Do not carry unauthorized materials inside the examination hall, unless exclusively allowed by course instructor due the specific nature of the exam.

- (a) Short notes,
- (b) Loose papers
- (c) Notebooks,
- (d) Mobiles,
- (e) Digital diary,
- (f) Do not write anything on covers.

(iii) Even if, material is not related to the examination, you will be charged for UFM.

(iv) Candidates are not allowed to leave the examination hall until the first hour from the time of commencement of the examination.

(v) Do not copy, Talk or indulge in unfair means. The report provided by the Invigilator is final. No excuses of any kind will be listened to or accepted.

2. Any contravention of these instructions and the use of any unfair means will render the student liable for punishment.

2.1 Actions By the Invigilator's on Detecting Unfair means Case

(a) As soon as a student is suspected by the invigilator or any other authorized person of having resorted to unfair means: Invigilator shall immediately take possession of the answer book along with the relevant material found with the student and the invigilator. The papers, notes, books, electronic devices etc. found in possession of the student shall be duly signed

by the student and the invigilator, sealed and attached with the seized answer-book in presence of the student. In case student is found to have written something on the body part a photo of same may be taken on the web cam available etc., if possible. In casestudent indulges in UFM other than possession of unauthorized material like talking to fellow student, attempting to copy from fellow student, allowing fellow student to copy, discussing answer with fellow student outside the hall etc., the nature of offence must be duly recorded by the invigilator.

(b) The invigilator in-charge shall get the prescribed form (attached) for unfair means filled and signed by the student and give his / her comments on the same, in prescribed place.

(c) After completing all the above formalities, a fresh answer-book shall be given to the student for completing the Examination.

(d) If the student does not hand over the relevant material and / or refuses to fill up and sign the prescribed form, the same shall be recorded on the prescribed form. In this case, co- Invigilator may sign as a witness to the event.

(e) No extra time will be given for completing the Examination as a result of this procedure.

(f) After Examination is over, these answer books duly marked as I (confiscated copy) and II (freshly issued copy) along with the material found in possession and the prescribed form duly filled and signed by the Invigilator In charge shall be delivered separately to the Registrar/controller of Examination.

2.2 Convening of Committee on Unfair Means

(a) A Committee (Standing Committee) appointed by the Vice-Chancellor shall enquire intocases of unfair means in the Examination. Composition of the committee shall be:

1. Controller of Examinations - Chairman
2. Three Faculty members - nominated by the Vice Chancellor- members

(b) The Committee shall thoroughly examine the cases on the basis of the material/ documents placed and give hearing to the student and the concerned Invigilator. It shall submit its recommendations after laying down clearly the nature of the offence to the Vice Chancellor for consideration and necessary orders.

(c) A two member (Dean/HoD) flying squad will be appointed by the Director of Evaluation for every examination.

2.3 What constitutes an UFM

A student necessarily need not be actively involved in cheating to be viewed as a case of UFM. Willful or even unintentional mistake of noncompliance of instructions/guidelines for the examination may also be charged as UFM. The acid test for the same is possession of material or indulgence in an act which may provide unlawful gains.

2.4 Categories of Offences and Punishments

Following actions may be taken for different categories of offences enumerated below:

(A) Category 1 (Not Adhering to Guidelines): Nature of Offence

(a) A student is found talking in the Examination Hall to another student.

(b) A student is found to be talking to a person outside the Examination-hall before submission of the answer sheet e.g. while going to the wash room etc.

(c) A student has deliberately changed his/her seat in the Examination-hall without the permission of invigilator.

Action to Be Taken: The invigilator in charge of the room/hall shall immediately take possession of the first answer book. The student shall be informed that the first answer sheet is being recommended to be cancelled and same may not be evaluated. The student shall be provided with a second answer book. **The first answer-book shall be cancelled after deliberations of the UFM committee and the second answer-book only is to be evaluated**.

(B) Category 2 (Attempt to take un-lawful advantage): Nature of Offence

(a) A student is reported to have appealed to the course coordinator in the answer-book. (Examiner should report such cases to the Dean, as they may arise during evaluation exercise).

(b) Writing the solutions of the questions on the question paper itself /electronic device etc. during the Examination whether with or without intention to use/circulate the same.

(c) A student is found possessing cell phone or any other item of such type or communication gazette in the Examination Hall though not established to have usedit.

(d) A student is found possessing any notes or printed unauthorized material or notes written on any part of the body-clothes or instruments such as set square, electronic device etc. or having notes written on chair, table, desk or drawing board etc. during the Examination but as per assessment of invigilator has not used the same.

(e) A student tries to/or appeals to the Invigilator for help during the Examination

Action to Be Taken: The invigilator in charge of the room/hall shall immediately take possession of the first answer book immediately on occurrence or detection. The student is to be provided with a fresh answer sheet. **The UFM committee may award cancellation of the concerned paper and direct for award of zero marks in the concerned examination**.

(C) Category 3 (Direct intent/attempt to draw un-lawful advantage) Nature of Offence:

(a) Cheating/copying detected during evaluation of the answer sheet (Examiners toreport such cases if detected).

(a) Disrupting the smooth conduct of Examination in any way.

(b) Making use of unauthorized material like written/photocopied note/written on the body parts, on the clothes or the desk or calculator or box. etc./ by himself/herself or through assistance of others.

(c) Found to be consulting notes or books while being out-side the Examination Hall during the Examination hours.

(d) Found to be passing on a copy of question(s) set in the paper or solution thereof to anyone.

(e) Found to be allowing other students to copy from his/her answer book.

(f) Found communicating or attempting to communicate directly or through someone else with the Examiner or anybody connected with the University Examination for influencing them in the award of marks.

(g) Found to be guilty of swallowing or destroying any note or paper or any other material found with him/her.

Action to Be Taken: The student should be awarded Fail grade in that subject. The student may be allowed or / disallowed to appear in next supplementary Examination of that subject.

(D) Category 4 (Direct involvement in unethical means): Nature of Offence

A student is found:

(a) In possession of a solution of a question set in the paper through the help of any student, supervisory or ministerial staff or some other agency/person.

(b) Guilty of having made previous arrangement to obtain help in connection with the question paper in cases not covered by the above provision.

Action to Be Taken: All Examination to be cancelled for that semester and the student to be awarded fail grade in all courses registered for the semester. Further the student is disallowed from appearing in supplementary examination

(E) Category 5 (Direct involvement in unethical means and lacking integrity): Nature of Offence

(a) Smuggling in an answer-book, taking out or arranging to send out an answer- book.

(b) Writing deliberately another students' roll no. in his/her answer-book.

(c) found in possession of answer-book not his/her own

(d) impersonating another candidates

(e) Allowing impersonation in any Examination.

(f) Guilty of serious misconduct in the Examination Hall or obstructing implementation the instructions of the superintendent or any of the invigilators in the Examination Hall.

(g) Using threatening or foul language etc. during the Examination.

Action to Be Taken: All Examinations of that semester to be cancelled semester and the student to be awarded fail grade in all courses registered for the semester. Further the student is disallowed from appearing in supplementary examination. In addition, the student be debarred from appearing in any University Examination for a period of one semester or expulsion from the University depending on the gravity of the offence.

(F) Category 6 (Involving other persons): Nature of Offence

Any person who is not a candidate for any Examination found committing or abetting in committal of any of the offences mentioned above.

Action to Be Taken: To be dealt with the Vice-Chancellor in an appropriate manner including expulsion from the University if the student is candidate from this University. In case offender is not from the University, the legal action as may be required to be initiated.

(G) Category 7 (Repeat/habitual offences): Nature of Offence

Second/subsequent case(s) of UFM reported against a student in the same academic year.

Action to Be Taken: One step higher punishment than the most severe punishment awarded so far in all the UFM cases against him/her, including the action corresponding to present UFM case.

2.5 Cases not covered by these Regulations.

To be decided by the Vice-Chancellor.

2.6 Unfair means / Plagiarism in Class Work

Any case pertaining to purported resorting to unfair means/ plagiarism during the Class Work/ Quizzes/ Submission of Seminar Report/ Dissertation/ Practical's/ Laboratory Classes/ Projects etc. shall be dealt with by the appropriate committee/ persons as nominated by the Dean (SEAS).

If in the opinion of such committee the offence is of serious nature, it shall be referred to the Vice Chancellor for investigation through Standing Committee of the University. These offences could be:

(a) Which have occurred before or after the Examination, or partly before, during and after the Examination

(b) Which have been detected after the Examination/declaration of the result/award of the degree

(c) Which has been reported or detected after a research paper report/ note/ communication has been published in a Research Journal widely circulated magazine/Proceedings of conferences/seminar or a monograph/ book, and or any electronic device.

(d) The penalty in such cases of unfair means/plagiarism which have been found to be true and shall be recommended by the appropriate committees of the department/ University Standing Committee, as the case may be. The imposition of any such penalty shall be at the discretion of the Vice-Chancellor, who, after considering the full facts and the report on the matter

   (i) may impose the same penalty,

   (ii) may reduce the penalty, or

   (iii) may enhance the penalty recommended by the committee.